

UD-26-000418 CHAHAL, HARJIT SINGH vs ESTELL, KARL, Sr – Motion to Vacate and Set Aside Judgment – HEARING REQUIRED.

County: stanislaus

Department: 23

Hearing date: 2012-04-02

Motion: The Court is inclined to DENY the motion, as relief pursuant to Code Civ. Proc. § 473(b) is not available after the matter has been litigated on the merits, and Defendants have failed to demonstrate grounds for their argument that the judgment herein is void. In addition, the Court notes that Defendants' pleadings, including the instant motion, consistently violate the requirements of Cal. Rules of Ct., rule 2.108 with regard to the formatting of papers submitted to the Court. Defendants are reminded that they are not entitled to special consideration based on their self-represented status and are responsible for following the rules of procedure in the same manner as an attorney practicing before this Court. (ViaView, Inc. v. Retzlaff (2016) 1 Cal.App.5th 198, 208.) The following are the tentative rulings for cases calendared before Judge David Hood in Department 24: ***There are no tentative rulings in Department 24*** The following is the tentative ruling for a case calendared before Commissioner Jared D. Beeson in Department 19 located at the Turlock Division at 300 Starr Avenue, Turlock, CA:

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: 3eb6ef9693b53cc19dc61d124b41339458901a0101496aba3e15da8ac3473950

UD-26-000418 – CHAHAL, HARJIT SINGH vs ESTELL, KARL, Sr – Motion to Vacate and Set Aside Judgment – HEARING REQUIRED.

The Court is inclined to DENY the motion, as relief pursuant to Code Civ. Proc. § 473(b) is not available after the matter has been litigated on the merits, and Defendants have failed to demonstrate grounds for their argument that the judgment herein is void.

In addition, the Court notes that Defendants' pleadings, including the instant motion, consistently violate the requirements of Cal. Rules of Ct., rule 2.108 with regard to the formatting of papers submitted to the Court. Defendants are reminded that they are not entitled to special consideration based on their self-represented status and are responsible for following the rules of procedure in the same manner as an attorney practicing before this Court. (ViaView, Inc. v. Retzlaff (2016) 1 Cal.App.5th 198, 208.)

The following are the tentative rulings for cases calendared before Judge David Hood in Department 24:

There are no tentative rulings in Department 24

The following is the tentative ruling for a case calendared before Commissioner Jared D. Beeson in Department 19 located at the Turlock Division at 300 Starr Avenue, Turlock, CA: